



ANTI TERRORISM (SECOND AMENDMENT) ACT, 2005.

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ACT No. II OF 2005

An Act further to amend the Anti-Terrorism Act, 1997

WHEREAS it is expedient further to amend the Anti-terrorism Act, 1997 (XXVII of 1997), for the purposes hereinafter appearing;

It is hereby enacted as follows:-

1. Short title and commencement.- (1) This Act may be called the Anti-Terrorism (Second Amendment) Act, 2004.

(2) It shall come into force at once.

2. Amendment of section 6, Act XXVII of 1997. In the Anti-Terrorism Act, 1997 (XXVII of 1997), hereinafter referred to as the said Act, in section 6, in subsection (2), after clause (e), the following new clause shall be inserted namely:-

"(ee) involves use of explosives by any device including bomb blast;"

3. Amendment of section 7, Act XXVII of 1997. In the said Act, in section 7,-

- (i) in clause (b), for the words "five year" the words "ten years" shall be substituted and for the words "fourteen years" the words "imprisonment for life" shall be substituted;
- (ii) in clause (c) for the words "seven years" the words "ten years" shall be substituted;
- (iii) in clause (d), for the words "and not exceeding fourteen years" the words "but may extend to imprisonment for life" shall be substituted;
- (iv) after clause (f), the following new clause shall be inserted, namely: -
 - "(ff) the act of terrorism committed falls under section 6(2) (ee), shall be punishable with imprisonment which shall not be less than fourteen years but may extend to imprisonment for life;"
- (v) in clause (g), for the words "six months" the words "two years" shall be substituted and for the words "three years" the words "five years" shall be substituted;
- (vi) in clause (h), for the words "one year" the words "five years" shall be substituted and for the words "and, not more than ten years" the words "but may extend to imprisonment for life" shall be substituted; and
- (vii) in clause (i), for the words "six months" the words "five years" shall be substituted and for the words "five years" the words "ten years" shall be substituted.

4. Amendment of section 11G, Act XXVII of 1997. In the said Act, in section 11 G, for subsection (2), the following shall be substituted namely:-

"(2) A person who commits an offence under subsection (1) shall be libable to imprisonment for a term which may extend to five years, or with fine, or with both."

5. Amendment of section 11N, Act XXVII of 1997.- In the said Act, in section 11N, for the words "six months" the words "five years" shall be substituted and for the words "five years" the words "ten years" shall be substituted.

6. Amendment of section 11V, Act XXVII of 1997. In the said Act, in section 11V, in subsection (2), for the word "imprisonment for a maximum term of seven years", the words "imprisonment for life" shall be substituted.

7. Amendment of section 11W, Act XXVII of 1997. In the said Act, in section 11W, for subsection (2), the following shall be substituted, namely:-

"(2) Any person quality of an offence under subsection (1) shall be punishable on conviction with imprisonment which may extend to five years and with fine."

8. Amendment of section 11X, Act XXVII of 1997. In the said Act, in section 11X,-

- (i) in subsection (2), for the words "six months" the words "five years" shall be substituted and for the words "five years" the words "ten years" shall be substituted; and
- (ii) in subsection (3), for the words "six months" the words "five years" shall be substituted and for the word "three, years" the words "ten years" shall be substituted; and

9. Amendment of section 19; Act XXVII of 1997. In the said Act, in section 19,-

- (i) for subsection (8), the following shall be substituted, namely:

"(8) An Anti-Terrorism Court shall not give more than two consecutive adjournments during the trial of the case. If the defence counsel does not appear after two consecutive adjournments, the Court may appoint a State Counsel with at least seven years standing in criminal matters for the defence of the accused from the panel of advocates maintained by the Court for the purpose in consultation with the Government and shall proceed with the trial of the case."

- (ii) after subsection (8) substituted. as 'aforesaid, the following new subsection shall be inserted, namely:-

"(8a) Non-compliance with the provisions of subsection (8) may render the presiding officer of the Court liable to disciplinary action by the concerned High Court."

(8b) Notwithstanding anything contained in section 7 of the Explosive Substances Act; 1908 (VI of 1908), or any. other law for the time being in force, if the consent of sanction of the appropriate authority, where required, is not received within thirty days of the submission of challan in the Court, the same shall be deemed to have been given or accorded and the Court shall proceed with the trial of the case."

10. Substitution of section 21G, Act XXVII of 1997. In the said Act, in section 21G, after the word "tried" the word "exclusively" shall be inserted.

11. Amendment of section 21L, Act XXVII of 1997. In the said Act; in section 21L, for the words "six months" the words "five years" and for the words "five years" the words "ten years" shall be substituted.

12. Amendment of section 25, Act XXVII of 1997. In the said Act, in section 25, after subsection (8), the following new subsection shall be added, namely:-

"(9) For the purposes of hearing appeals under this section each High Court shall establish a Special Bench or Benches consisting of not less than two Judges.

(10) While hearing an appeal, the Bench shall not grant more than two consecutive adjournments."

13. Insertion of new section, Act XXVII of 1997. In the said Act, after section 28, the following new section shall be inserted, namely:-

"28A. Impounding of passport of person charge-sheeted under the

Act.-Notwithstanding anything contained in any other law for the time being in force, the passport of a person, who is accused of an offence under this Act, shall be deemed to have been impounded for such period as the Court may deem fit."

14. Amendment of the Third Schedule, Act XXVII of 1997.- In the said Act, in the Third Schedule, after paragraph 3, the following new paragraph shall be added, namely:-

"4. Without prejudice to the generality of the above paragraphs, the Anti-Terrorism Court to the exclusion of any other Court shall try the offences relating to the following namely:-

(i) Abduction or kidnapping for ransom;

(ii) use of fire-arms or explosives by any device, including bomb blast in a mosque, Imambargah, church, temple or any other place of worship, whether or not any hurt or damage is caused thereby; or

(iii) firing or use of explosives by any device, including bomb blast in the court premises."
